BY ORDER OF THE COMMANDER
8TH FIGHTER WING

8TH FIGHTER WING INSTRUCTION
44-197

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Medical

MILITARY DRUG DEMAND REDUCTION (DDR) PROGRAM (PA)

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This instruction implements Air Force Manual (AFMAN) 44-197, *Military Drug Demand Reduction (DDR) Program*. It establishes policies and procedures for the administration of the DDR Program at the 8th Fighter Wing (8 FW), Kunsan Air Base, Republic of Korea (RoK). This instruction applies to any active duty military member, or Reserve/National Guard member on active duty orders (i.e., Air Force, Army, Navy, Marine Corps). This instruction establishes the responsibilities and procedures to be followed by base personnel and agencies. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route the AF Forms 847 from the field through the appropriate functional chain of command. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and disposed of in accordance with Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the Air Force.

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1. Goals and Objectives:

1.1. Enhance mission readiness and foster a drug free environment through a comprehensive program of education, prevention, deterrence and community outreach in support of the President's National Drug Control Strategy.

1.2. Maintain the health and wellness of a fit and ready fighting force as well as a drug-free Air Force community.

1.3. Deter military members (including those members on initial entry on active duty after enlistment or appointment) from using illegal drugs and abusing controlled substances.

1.4. Assist commanders in assessing the security, military fitness, readiness and good order and discipline of their commands.

1.5. Detect and identify those individuals who use and abuse illegal drugs and other controlled substances.

1.6. Provide a basis for action against a service member who tests positive for illicit drug use.

1.7. Ensure that urine specimens collected as part of the drug abuse testing program are supported by a legally defensible chain of custody procedure at the collection site, during transport and at the drug testing laboratory.

2. Levels and Frequency of Testing:

2.1. IAW DoDI 1010.01, *Military Personnel Drug Abuse Testing Program (MPDATP)*, Section 2.d.: "All Service members will be tested, at a minimum, once annually. However, more frequent testing is recommended and encouraged as an effective means to detect drug use." To add, the Annual Compliance Drug Testing Tool within Internet Forensic Toxicology Drug Testing Laboratory (iFTDTL) will be periodically utilized/combined to conduct "unique member testing" (i.e., members who have not yet been tested during the Fiscal Year (FY)) to satisfy the established annual military "100% end strength testing". Consultation with Staff Judge Advocate (SJA) implemented. Keeping with this premise, via DoD-approved drug testing software, members unavailable for drug testing; i.e., leave, pass, Temporary Duty (TDY), quarters, flying status, crew-rest, missile duty and/or non-duty status, will be tracked/documented and tested at a later date via use of the installation (8 FW/CC) Wolf's DDR regulatory drug testing system.

2.1.1. Random testing will occur at least 6 times per month.

2.1.2. Non-Random testing (e.g., NightHawk gate sweeps, unit sweeps, commander directed or forensic collections) are conducted as indicated.

2.1.3. A combination of at least eight random and non-random testing events will occur each month.

2.2. Any TDY AF personnel can be tested, appropriate to the local drug threat.

3. DDR Responsibilities:

3.1. **The 8th Fighter Wing Commander (8 FW/CC)**

3.1.1. Ensures testing level and type of test is appropriate to the local drug threat.

3.1.2. Chairs the Community Action Board (CAB) or delegates 8th Fighter Wing Vice Commander (8 FW/CV) to chair the CAB, which meets at least quarterly. The AF mandated DDR quarterly meeting is briefed at the CAB/wing leadership and commanders forum.

3.1.3. Ensures the DDR Program has adequate and appropriate facilities for full-time use.

3.1.3.1. Provides a locking private office for the DDR Program Manager (DDRPM). This room is accessible only by personnel authorized by 8th Fighter Wing Judge Advocate (8 FW/JA). A "Restricted Access" sign is posted on the door.

3.1.3.2. Provides a locking private office for the storage, shipping and packing room. This room is accessible only by personnel authorized by 8 FW/JA. A "Restricted Access" sign is posted on the door.

3.1.3.3. Provides access to a reception desk and waiting room area.

3.1.3.4. Provides access to a shared room used for training DDR observers and Group/Unit Trusted Agents (TAs).

3.1.3.5. Provides access to lockable male and female bathrooms. Additionally, male and female bathrooms on the first floor will be made available when required (e.g., non-random sweeps).

3.1.3.6. Provides keys sufficient to enable 24/7 staff access to DDR facilities/areas.

3.1.3.7. Provides Information Technology support (both hardware and technicians) via 8 CS.

3.1.3.8. Tasks group leaders to provide a Drug Testing Program Administrative Manager (DTPAM), when required due to absence of the civilian DTPAM.

3.2. **The 8th Fighter Wing DDRPM (8 FW/CVD)**

3.2.1. Serves as the 8 FW OPR for the DDR Program.

3.2.2. Is a full-time civilian that manages all aspects of the DDR Program.

3.2.3. Directly manage, trains, oversees the DTPAM and ensures training is completed for all observers and TAs.

3.2.4. Serves as the OPR for Non-Random gate sweeps (e.g., NightHawk).

3.2.5. Serves as the OPR for Non-Random unit sweeps.

3.2.6. Serves as the OPR for unscheduled, commander directed or forensic after duty hours collection protocols.

3.2.7. Coordinates with 8 FW Group and Unit/CCs to ensure:

3.2.7.1. Compliance with Random and Non-Random testing protocols.

3.2.8. Coordinates with the 8 FW First Sergeants' Council to ensure:

3.2.8.1. Male and female trained observers are provided to the DDR Program on the following schedule: January: 8 CS; February: 8 MDG; March: 8 SFS; April: 8 AMXS; May: 8 FSS; June: 8 CES; July: 8 MXS; August: 8 LRS; September: 8 MDG; October: WSA/8 CPTS; November: 8 OG; December: 8 MXS. Deviations from this schedule are permitted only with concurrence of the wing DDRPM.

3.2.8.2. A minimum of 3 males and one female observer is required every time random testing is scheduled (approximately a five-hour block of time). Not later than 2 weeks prior to the beginning of the unit's designated month, a pool of four males and two females (all E-5 or above) will be identified and those names forwarded to the DDRPM and to 8 FW/JA for a suitability review. Units are free to rotate observer duty among trained personnel within this pool as they see fit.

3.2.8.3. The DDRPM will arrange a time to train the observers prior to the first duty day of the month in which they serve. Alternatively, by mutual consent, observer training can occur just before the first testing session of the designated month. Observers must always be released by their units to obtain training prior to the first testing session.

3.2.9. Coordinates with the 8MDSS Laboratory to arrange for after hours, commander directed or forensic sample collection; in consultation with the SJA, to secure specimens outside normal duty hours, including weekends and holidays.

3.2.10. IAW AFMAN 44-197; para 4.5.7.3. "Specimens collected as a result of aircraft incidents/accidents must be collected by the military treatment facility laboratory and submitted to the Armed Forces Medical Examiner System (AFMES). (T-1)."

3.2.11. Ensures DDR Program assets are not involved in random or non-random collection or drug testing of sister service personnel.

3.2.12. Ensures a combination of eight random and non-random testing events occur each month.

3.3. **Drug Testing Program Administrative Manager (DTPAM) Requirements**

3.3.1. In the absence of the 8 FW "civilian" Drug Testing Program Administrative Manager (DTPAM), wing personnel must be provided and trained.

3.3.2. The name of the nominated DTPAM is forwarded to 8 FW/JA for a suitability review. Commanders will review the individual's Personnel Information File. IAW AFMAN 44-197; para 3.3.2.6. "Commanders will coordinate with local military law enforcement authorities (e.g., OSI and/or 8 SFS, etc.) and/or the SJA to verify that the selected individual does not have a record of conviction for any offense or history of past misconduct involving dishonesty, fraud, or drug abuse (including use, possession, or distribution)." The DTPAM must be an E-5 or above. 8 FW/JA will screen any request that an E-4 serve as a DTPAM.

3.3.3. Ensure DTPAMs report for unrestricted duty at DDR NLT 5 duty days after JA's review.

3.3.3.1. Should the report date fall in the middle of an exercise, ensures DTPAM will be sent to DDR the next duty day following an exercise event.

3.3.3.2. Ensure DTPAM is not given taskings from their Group during their term of service unless coordinated with the DDRPM.

3.3.4. Ensure DTPAMs will not be released for ordinary leave or TDY during their term of DDR service. Should a DTPAM be unable to complete their term of service or be absent for 5 or more consecutive duty days (e.g., emergency medical care or emergency leave), the Group/CC will ensure the name of a replacement is provided to 8 FW/JA for a suitability review No Later Than (NLT) 2 duty days after discovery.

3.3.5. The individual selected to perform DTPAM duties should have the ability to poses near perfect attention to details and be able to write clearly/neatly (forensic review and coordination).

3.3.6. Ensure DTPAMs understand their work schedule, M-F 0730-1800 hours; pending individuals waiting to provide a urine specimen. DTPAMs must be made available for after duty hours non-random sweeps as required.

3.3.7. Ensure group/unit TAs are correctly appointed and trained.

3.4. **The 8th Fighter Wing Judge Advocate (8 FW/JA)**

3.4.1. Serves as the OPR for DDR quarterly inspections and DDR related courts martial actions.

3.4.2. Advises Commanders, DDRPM, DTPAM and other installation officials/agencies regarding legal aspects of the drug testing program.

3.4.3. Advises and coordinates all requests for urinalysis drug testing other than routine random inspection testing.

3.4.4. Reviews military DTPAM records to ensure member meets legal qualifications and notifies DDR when a member does not comply with requirements.

CHRISTOPHER B HAMMOND, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFMAN 44-197, *Military Drug Demand Reduction (DDR) Program,* 30 Jul 2019

AFI 33-322, *Records Management and Information Governance Program*, 23 Mar 2020

DoDI 1010.01, *Military Personnel Drug Abuse Testing Program (MPDATP),* 14 Feb 2018

Adopted Form

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AF—Air Force

AFDTL—Air Force Drug Testing Laboratory

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFMES—Armed Forces Medical Examiner System

AFOSI—Air Force Office of Special Investigations

AFRIMS—Air Force Records Information Management System

CAB—Community Action Board

CC—Command/Commander

DoD—Department of Defense

DDR—Drug Demand Reduction

DDRPM—Drug Demand Reduction Program Manager

DEERS—Defense Enrollment Eligibility Report System

DTPAM—Drug Testing Program Administrative Manager

FW—Fighter Wing

FY—Fiscal Year

IAW—In Accordance With

iFTDTL—Internet Forensic Toxicology Drug Testing Laboratory

JA—Judge Advocate

NLT—No Later Than

OCR—Office of Collateral Responsibility

OPR—Office of Primary Responsibility

RDS—Records Disposition Schedule

RoK—Republic of Korea

SJA—Staff Judge Advocate

TA—Trusted Agent

TDY—Temporary Duty

UCMJ—Uniform Code of Military Justice

USC—United States Code

Terms

Community Outreach—Defined as on and off base prevention, drug education/awareness and deterrence activities targeted to Department of Defense (DoD) family members, retirees, civilians and contractors.

Consent Testing—Prior to a probable cause or commander-directed urinalysis test, first ask the member if he or she will consent to a urinalysis test. Commanders are not required to give Article 31, Uniform Code of Military Justice (UCMJ), rights prior to asking for consent. However, evidence that a member was read these rights may be used to help demonstrate the member's consent was voluntary. Results may be used for UCMJ or administrative actions, including adverse characterization of administrative discharges. Consent is not valid if it is mere acquiescence to authority. See Military Rule of Evidence 314(e). While not required, it is best to obtain the member's consent in writing.

Drug—Any controlled substance included in Schedules I, II, III, IV, and V in 21 USC § 812, including anabolic or androgenic steroids, or any intoxicating substance other than alcohol or tobacco, that is inhaled, injected, consumed, or introduced into the body in any manner to alter mood or function.

Drug Demand Reduction Program Manager (DDRPM)—Individual hired or appointed in writing by the installation commander or equivalent to be responsible for oversight of the military and civilian drug testing programs and drug outreach, education, and prevention. Also responsible for managing, training and certifying assigned DTPAMs for specimen collection.

Drug Testing Program Administrative Manager (DTPAM)—Individual hired or appointed in writing by the installation commander or equivalent to administer collection, processing, and shipping of specimens and safeguarding of applicable information pertaining to the drug testing program.

Field Testing—Any drug urinalysis testing which is performed outside of the Air Force Drug Testing Laboratory (AFDTL), a DoD certified drug testing laboratory, or a Department of Health and Human Services drug testing laboratory, employing methodology which is defined as a rapid screening test.

Gender Marker—Data element in the Defense Enrollment Eligibility Reporting System (DEERS) database that identifies one's internal or personal sense of being male or female.

Inspection Testing—Random inspection testing is the best deterrent presently available against drug abuse. Urine specimens may be ordered as part of an inspection under Military Rule of Evidence 313(b). Inspections may be conducted to determine, e.g., if the command is functioning properly; if proper standards of readiness are maintained; and if personnel are present, fit and ready for duty. Individual members may not be singled out. An entire unit or a part of the unit may be inspected or may be subject to an installation-wide random selection process. Results may be used for UCMJ or administrative actions, including adverse characterizations of administrative discharges.

Observer—A service member assigned duty to directly observe the collection of urine specimens from members.

Probable Cause—The initial probable cause authorization may be verbal but should be followed up with a written authorization. Consult with the servicing SJA to determine whether a specimen collected under a probable cause test basis will be shipped to the appropriate testing laboratory before the written authority to search and seize is received by the DDRPM or DTPAM.

Rehabilitation Urine Testing—Rehabilitation testing is a form of commander-directed testing. A member in drug rehabilitation will be urine tested on a no-notice basis. The unit commander may discontinue rehabilitation urine testing if a courts-martial or separation action is initiated on a member in rehabilitation.

Secure Storage—Secure storage is an area used to store all materials and specimens that hold the potential of being useful as evidence in a court proceeding or administrative hearing. Its level of security must be on par with evidence storage security used by law enforcement. At a minimum, a secure storage area must be maintained with access limited and controlled by appropriate procedures and the two layers of locks or other devices to prevent unauthorized access.

Trusted Agent—An individual appointed in writing by unit commanders to receive and maintain rosters of individuals (notification letter from the DTPAM/collector) selected for urinalysis testing. The trusted agent is responsible for notifying, via commander's order, individuals selected for urinalysis testing and identifying those individuals unavailable for testing. The trusted agent must be a member of the Commander's Support Staff. If the commander does not have a Commander's Support Staff, the commander must identify and appoint a trusted agent from within the unit.

Attachment 2

PRE-NIGHTHAWK PROTOCOL CHECKLIST

Figure A2.1. Pre-Nighthawk Protocol Checklist.

1. When 8 FW/CC wishes to conduct a NightHawk event, direct 8 FW/CV or 8 FW/CCC, 8FW/JA the DDRPM to plan a meeting NLT 20 (non-exercise) duty days prior to the desired date of the event.

2. Deconflict with known disruptive events/circumstances (e.g., DV visits or scheduled demonstrations by RoK citizens).

3. Nighthawk collections serve the purpose of high visibility deterrence, as opposed to, for cause testing of specific individuals or groups, which facilitates targeted detection. The collection times, number and frequency of individuals tested and maximum sample quantities per event will be identified in the written Wing Commander's Order to Provide Urine Sample.

4. The DDRPM will ensure sufficient DDR collection supplies will be available on the desired date.

5. DDR, with assistance of 8 FW/CCC will coordinate with 8 FW First Sergeants' Council to arrange for:
a. Security (8 SFS)
b. Transportation (8 LRS)
c. Fitness Center logistics (8 FSS)
d. Male and female observers (All Units)
e. DDR supplemental manpower (contingent upon scope of event) (All Units).

6. Schedule organizational meeting(s) with NightHawk participants to obtain signed nondisclosure agreements.

[*Note:* All specific protocols and documents are maintained by DDR.]

Attachment 3

PRE-UNIT SWEEP PROTOCOL CHECKLIST

Figure A3.1. Pre-Unit Sweep Protocol Checklist.

1. Unit sweeps can be conducted as a part of routine deterrence or due to suspicion of illegal drug use. When a Group or Unit/CC wishes to conduct a unit sweep, schedule a planning meeting with the DDRPM (OPR) and 8 FW/JA (OCR) NLT 14 (non-exercise) duty days prior to the desired date of the event.

2. The sweep will be conducted in the DDR offices (Fitness Center, 2nd floor) or the Theater.**

3. Ensure sufficient DDR collection supplies will be available on the desired date.

4. Unit/CC and CCF will arrange for:
a. Unit member notification and accountability
b. Male and female observers
c. DDR supplemental manpower (contingent upon scope of event)

5. Schedule organizational meeting of participants to obtain signed non-disclosure agreements.

[*Note:* Other specific protocols and documents are maintained by DDR (OPR).]

Attachment 4

AFTER DUTY HOURS COLLECTION PROTOCOL CHECKLIST

Figure A4.1. After Duty Hours Collection Protocol Checklist.

1. For cause collections are forensic detection in nature and are unrelated to other DDR deterrence efforts. The Group or Unit/CC should contact the on call 8 FW/JA officer to ensure the necessary forms, rights advisements, etc., are executed properly.

2. To arrange for sample collection, contact the on call 8 MDG laboratory technician via Ambulance Services (782-4333/4323).

3. Transport the person(s) who will provide the sample(s), along with the gender-appropriate observer(s) to and from the 8MDG (Bldg 405) as directed.

4. Follow-up with DDR the next duty day (782-4857).